

## **CRITICAL ERROR 1: Year mismatch — IA says "2025", suit says "2026"**

The title block on Page 1 reads:

"INTERIM APPLICATION (I.A. No. \_\_\_\_ OF **2025**)"  
"COMMERCIAL CIVIL SUIT NO. \_\_\_\_ OF **2025**"

But the civil suit title block says **2026**. This is an immediate registry rejection. The IA and the suit must bear the same year. The handwritten note on Page 1 also confirms the writer noticed something was wrong ("earlier version... If I am not wrong...").

**Ready to paste correction:**

"INTERIM APPLICATION (I.A. No. \_\_\_\_ OF 2026)  
IN  
COMMERCIAL CIVIL SUIT NO. \_\_\_\_ OF 2026"

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## **CRITICAL ERROR 2: The party is called "Appellant" — wrong terminology entirely**

Page 1 labels GDA as "**Appellant**." In a civil suit, the filing party is the **Plaintiff/Applicant** — not Appellant. Appellant is used only in appeals. Using "Appellant" in a first-instance commercial suit signals to the registry and judge that this is a recycled document from another matter and was not carefully prepared.

**Ready to paste correction:**

**"Applicant/Plaintiff:**  
Global Discovery Academy Pvt. Ltd."

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## **CRITICAL ERROR 3: The stay of Arbitral Award — wrong procedural provision invoked**

Page 2 states the application is:

"SEEKING INTERIM INJUNCTION AND STAY OF ARBITRAL AWARD DATED  
04.10.2025"

And the application heading says it is filed under:

"ORDER XXXIX RULES 1 & 2 READ WITH SECTION 9 OF THE COMMERCIAL COURTS ACT, 2015"

This is legally wrong and will be thrown out on this ground alone. **Stay of an Arbitral Award is governed by Section 36 of the Arbitration and Conciliation Act, 1996 — not Order XXXIX CPC.** Order XXXIX is for injunctions in civil suits. You cannot stay an arbitral award using a CPC injunction application. These are two completely different remedies under two different statutes.

Moreover, to challenge or stay an arbitral award, the correct remedy is filing an **objection petition under Section 34 of the Arbitration Act** — and the List of Dates on Pages 8-9 confirms the Defendant Trust has already filed exactly such a challenge on 02.01.2026 (Appeal Entry No. 2/2026). GDA is not a party to that Section 34 challenge either.

**What this means:** You have two options. Pick one before filing:

**Option A** — Drop the stay prayer entirely from the IA. Focus only on the injunction under Order XXXIX. The injunction prayer (restraining enforcement against GDA) is legally sound because GDA was not a party to the arbitration. The stay of the award itself is a different fight.

**Option B** — File a separate application under Section 34/36 of the Arbitration Act challenging the award as a non-party affected person, citing the ONGC v. Discovery Enterprises (AIR 2022 SC 2080) judgment which allows non-signatories to challenge arbitral awards in certain circumstances. This is a separate document from the IA.

**Ready to paste — corrected IA description if you choose Option A:**

"APPLICATION UNDER ORDER XXXIX RULES 1 & 2 READ WITH SECTION 151 OF THE CODE OF CIVIL PROCEDURE, 1908, READ WITH SECTION 9 OF THE COMMERCIAL COURTS ACT, 2015, SEEKING AD-INTERIM AND INTERIM INJUNCTION RESTRAINING THE RESPONDENTS FROM ENFORCING, IMPLEMENTING, OR TAKING ANY ACTION PURSUANT TO THE ARBITRAL AWARD DATED 04.10.2025 INSOFAR AS IT PURPORTS TO AFFECT THE APPLICANT'S RIGHTS, POSSESSION, ACCESS, AND INSTITUTIONAL PARTICIPATION"

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## **CRITICAL ERROR 4: No supporting affidavit attached**

Under Order XXXIX Rule 1 CPC, an interim injunction application **must be supported by an affidavit**. The IA document has no affidavit. Without it, the court cannot grant even an ad-interim order on Day 1. This is not procedural nicety — it is a mandatory requirement.

**Ready to paste — Affidavit to attach separately:**

"AFFIDAVIT IN SUPPORT OF INTERLOCUTORY APPLICATION

I, Pankaj OmPrakash Bindra, son of OmPrakash Bindra, aged about \_\_\_\_ years, Managing Director of Global Discovery Academy Pvt. Ltd., the Applicant herein, residing at F-5, Block-6, Rail Nagar, Alembic Road, Vadodara 390003, do hereby solemnly affirm and state as follows:

1. I am the Managing Director of the Applicant company and am fully conversant with the facts of the present matter and am competent to swear this affidavit.
2. I have read and understood the contents of the accompanying Interlocutory Application and confirm that the facts stated therein are true and correct to the best of my knowledge, information, and belief.
3. The Applicant has a strong prima facie case as set out in the accompanying Application and Civil Suit. The Arbitral Award dated 04.10.2025 was passed without the Applicant being a party and cannot bind the Applicant.
4. If the relief sought is not granted, the Applicant will suffer irreparable harm including disruption of an ongoing academic session, destruction of intellectual property embedded in the institution over fifteen years, and permanent reputational damage that cannot be remedied by monetary compensation.
5. The balance of convenience strongly favours preservation of status quo as the Respondents will suffer no prejudice from continuation of the academic institution pending adjudication.
6. The Applicant undertakes to abide by such terms and conditions as this Hon'ble Court may deem fit to impose.

Deponent: Pankaj OmPrakash Bindra

Date: \_\_\_\_\_

Place: Vadodara

Verified at Vadodara on \_\_\_\_\_ that the contents of this affidavit are true and correct to the best of my knowledge and belief and nothing material has been concealed."

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### **CRITICAL ERROR 5: Para 4.3 — "GDA Civil Suit V9.4" is visible as a document version name in the body of the IA**

Page 5 contains a circled reference to "**GDA Civil SUIT V9.4**" — this is a drafting artifact, a version label from the working document. It has been circled in handwriting (likely flagged for removal) but it is still in the typed text. If this appears in the filed document, it tells the court and opposite party that there were at least 9.4 versions of this document — raising questions about what changed across versions and whether earlier versions made admissions that were removed.

**Action required:** Delete "GDA Civil SUIT V9.4" entirely from Para 4.3. Replace with the actual citation of the civil suit number once assigned.

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### **CRITICAL ERROR 6: The handwritten note on Page 3 reveals the arbitration "covered by D2" argument is incomplete**

Page 3 has a handwritten note that reads: *"He was covered in Rs 2250 crores covered by 2 completely justice is given to us"* — this appears to be a note about the arbitral award amount and appears to suggest the landowners received something in the award. If this is factually accurate, it significantly affects the balance of convenience argument. If the landowners have already been awarded ₹2,250 Crores by the arbitrator, the court will ask: why do you need an injunction? The award has already compensated them. This needs to be addressed proactively in the IA.

#### **Ready to paste — add to Section 5 (Balance of Convenience):**

"5.3 The Applicant further submits that the Arbitral Award dated 04.10.2025 purports to grant relief to the Respondent Landowners against the Respondent Trust on the basis of the disputed Lease Agreement to which the Applicant is not a party. Any monetary or possessory relief already awarded to the Respondent Landowners under such Award sufficiently protects their claimed interests under the Lease, and no further coercive action against the Applicant or the institution is therefore warranted or proportionate. The Respondents therefore suffer no irreparable prejudice if status quo is maintained."

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### **CRITICAL ERROR 7: Prayer (a) in Section 8 is too broad and will be refused**

Prayer (a) reads:

"Restrain the Respondents from acting upon, enforcing, or implementing the Arbitral Award dated 04.10.2025 insofar as it affects the Applicant"

The phrase **"insofar as it affects the Applicant"** is undefined and the court cannot enforce it because nobody knows what "affects" means without a trial. Courts routinely refuse injunctions with undefined scope. You need to specify exactly which part of the award you want stayed and why.

#### **Ready to paste — specific replacement for Prayer (a):**

"a) Restrain the Respondent Landowners (Respondent Nos. 1 and 2), their agents, servants, nominees, or any person acting under or through them, from taking any

steps to execute, enforce, or give effect to the Arbitral Award dated 04.10.2025 in a manner that would result in: (i) eviction or dispossession of the Applicant from the National Showcase School premises at Block No. 112, Ampad, Sevasi, Vadodara 391101; (ii) disruption, interference, or termination of the academic operations of the said institution; (iii) removal or misappropriation of the Applicant's intellectual property, academic systems, ERP infrastructure, furniture, equipment, or institutional assets from the said premises; or (iv) interference with the Applicant's access to, participation in, or management of the educational operations of the National Showcase School (Sevasi School)."

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### **CRITICAL ERROR 8: Section 9 (Equity Statement) — handwritten note says "Cannot try to form a team to scare children" — this must not appear in the filed document**

Page 7 has a handwritten note reading: *"Cannot try to form a team to scare children, passed to scare numbers"* — this is a drafting note or personal comment. It must not be in the filed document under any circumstances. It will read as an emotional outburst rather than a legal submission and will undermine the professional credibility of the entire application.

**Action required:** Remove all handwritten annotations from the final typed version. The Section 9 Equity Statement in the typed body is fine — only the handwritten notes must be excluded.

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### **CRITICAL ERROR 9: The List of Dates (Pages 8-9) is printed upside down / mirror-reversed**

Pages 7, 8, and 9 of the scanned document are **printed upside down and mirror-reversed**. The List of Dates is a mandatory document that the judge reads first before hearing the injunction. If the filed copy is in this orientation, it will be returned by the registry. This must be corrected in the final print before filing.

**Action required:** Reprint pages 7, 8, and 9 in correct orientation (right-side up, left-to-right) before filing.

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### **CRITICAL ERROR 10: List of Dates is missing three critical events**

The List of Dates goes from 2023 (arbitration filing) directly to 04.10.2025 (award). It is missing three events that are crucial to your case and must be included because they establish why you are approaching this court now:

**Ready to paste — add these three entries to the List of Dates:**

| <b>Date</b> | <b>Event</b>                                                                                                                                                                                                      |
|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 17.02.2024  | Applicant files application before Sole Arbitrator to be joined as Respondent No. 2 as affected party, citing rights under Tripartite MOUs.                                                                       |
| 20.05.2024  | Sole Arbitrator rejects application, holding Applicant is not party to Lease Agreement, and directs Applicant to approach competent civil court. This order is the jurisdictional foundation of the present Suit. |
| 03.08.2024  | Applicant files pre-institution mediation application before District Legal Services Authority, Vadodara as required under Section 12A of the Commercial Courts Act, 2015.                                        |

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## **SUMMARY TABLE**

| <b>#</b> | <b>Error</b>                                     | <b>Location</b>        | <b>Severity</b>                   |
|----------|--------------------------------------------------|------------------------|-----------------------------------|
| 1        | Year says 2025, suit says 2026                   | Title block, Pages 1–2 | Registry rejection                |
| 2        | Party called "Appellant" not "Applicant"         | Page 1                 | Registry rejection                |
| 3        | Wrong statute invoked for stay of arbitral award | Page 2 heading         | Thrown out on Day 1               |
| 4        | No affidavit attached                            | Entire document        | No ad-interim order possible      |
| 5        | "GDA Civil SUIT V9.4" visible in body            | Para 4.3, Page 5       | Credibility damage                |
| 6        | ₹2,250 Crore award issue unaddressed             | Section 5              | Balance of convenience collapses  |
| 7        | Prayer (a) too vague to be enforced              | Section 8, Page 7      | Prayer refused                    |
| 8        | Handwritten personal note in Equity section      | Page 7                 | Professionalism damage            |
| 9        | Pages 7–9 printed upside down                    | Pages 7–9              | Registry returns document         |
| 10       | Three critical dates missing from List           | Pages 8–9              | Jurisdictional foundation missing |